**UNITED STATES DISTRICT COURT**

**FOR THE DISTRICT OF ARIZONA**

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| ,<br><br>Plaintiff,<br><br>v.<br><br>,<br><br>Defendant. | Case No.: CV-25-03367-PHX-SMB<br><br>**[PROPOSED] ORDER PRELIMINARY INJUNCTION AND MEET AND CONFER SCHEDULE** |

The Court has considered Plaintiff's **Motion for a Preliminary Injunction** and the accompanying **Motion for a Reasonable Meet-and-Confer Schedule**. The parties have complied with the good-faith conference requirement of **Local Rule 7.2** and the Court is prepared to enter an order that addresses both the meet-and-confer schedule and the requested protective injunction.

*I. Meet-and-Confer Schedule*

1. **Telephone Conference.** The parties shall confer by telephone **within five (5) business days** of the entry of this Order. The conference shall be scheduled by the parties' counsel and shall be conducted at a mutually agreeable time.
2. **Written Meet-and-Confer Schedule.** Within **ten (10) calendar days** after the telephone conference, the parties shall exchange a written meet-and-confer schedule that identifies (a) the issues to be discussed, (b) the dates by which any discovery requests, responses, or other pleadings will be served, and (c) any other procedural matters necessary to move the case forward. The written schedule shall be filed with the Court and served on all parties.

*II. Protective Order and Preliminary Injunction*

The Court finds that Plaintiff has demonstrated a likelihood of success on the merits, a likelihood of irreparable harm absent injunctive relief, that the balance of hardships tips in Plaintiff's favor, and that the public interest is served by the relief requested. Accordingly, the Court **GRANTS** Plaintiff's request for a protective order and preliminary injunction, **subject to the conditions set forth below**.

3. **Protective Order.** It is **ORDERED** that the United States Government, including the **Department of Health and Human Services**, the **Indian Health Service**, the **Governing Body of the Phoenix Indian Medical Center**, and **all individual defendants** (Endreya McCabe, Dora Birdshead, Brandi Benjamin, Candace Lee, Debra Ward-Lund, Jason White, Clinton Pope, Ty Reidhead, Naomi Hixson) are **enjoined from taking any further adverse personnel actions** against Plaintiff, including but not limited to:

- placement on administrative or investigative leave;
- loss or revocation of government-issued property or system access;
- denial of reinstatement of FMLA leave or any other statutory accommodation;
- retaliation for Plaintiff's protected disclosures under the Whistleblower Protection Act; and
- any other action that would impair Plaintiff's employment rights.

4. **Statutory Authority.** This protective order is issued pursuant to **28 U.S.C. § 1652** (protective orders), **Federal Rule of Civil Procedure 65** (preliminary injunctions), and **Local Rule 65** of the District of Arizona.

5. **Bond.** The United States shall **post a bond in the amount of Twenty-Five Thousand Dollars ($25,000.00)** with the Clerk of Court **within ten (10) days** of the entry of this Order to secure compliance with the injunction. The bond shall be conditioned on the faithful performance of the injunction and may be forfeited in the event of a violation.

6. **Duration of the Injunction.** This injunction shall **remain in effect until further order of the Court or until final judgment is entered, whichever occurs first**.

7. **Notice of Right to Appeal.** Any party may appeal this Order pursuant to

**28 U.S.C. § 1291**. A notice of appeal must be filed **within fourteen (14) days** after the entry of this Order.

8. **Case Law Supporting the Order.** The Court relies, in part, on the following authorities:

   – *Kelley v. United States*, 526 U.S. (1999) (officials not immune for actions beyond authorized authority);

   – *Burlington Northern & Santa Fe Ry. v. White*, 548 U.S. 53 (2006) (retaliation liability attaches to those who implement the adverse action); and

   – *Kloeckner v. Solis*, 568 U.S. 41 (2012) (standard for mixed-case jurisdiction and the Court's authority to grant injunctive relief).

**IT IS SO ORDERED.**